

PRIVATE AND CONFIDENTIAL

Amazon Underwriting Pty Ltd

Amazon
Privacy Policy

Version 1.3

Amazon Privacy Policy

This Privacy Policy applies to the operations of Amazon Underwriting Pty Ltd AFSL TBA ABN 17 605 879 507 (“we” or “us”), and explains how we manage your personal information. We are committed to ensuring your privacy in accordance with the Privacy Act 1988 (Cth) and the Australian Privacy Principles.

What is Personal information?

Personal Information is any information or an opinion about an identified individual, or an individual who is reasonably identifiable whether the information or opinion is true or not; and whether the information or opinion is recorded in a material form or not.

What information do we collect and how do we use it?

The personal information we generally collect and hold may include your name, address, age or date of birth, information specific to the insurance product or service which you apply for or which we provide to you, such as details of your property, insurance and claims history. For some of our products and services, we also collect and hold sensitive information, including information or an opinion about your health or a disability, memberships of professional or trade associations and criminal record.

For employment applications, we collect and hold your name, address, contact details, employment history, qualifications and experience, references and names and contact details of your referees.

How personal information is collected and held

The method by which personal information may be collected will depend on the nature of the insurance products and services being provided. We may collect your personal information in writing, by email, by facsimile, through information submitted via our online services and verbally in person and by telephone. We generally collect your personal information from your nominated insurance broker or you, your other agents and representatives.

In some circumstances, we may obtain your personal information from third parties claiming under your policy, publicly available sources such as the internet, our claim administrators, claim assessors and investigators, expert witnesses, witnesses, medical service providers, law enforcement officers and statutory and regulatory bodies. This will generally be to clarify or assess information that you have provided on your proposal or claim form.

Your personal information is held in secure environments including computer systems and databases, paper records and telephone recordings. We may utilise related companies, agents and third party suppliers for data storage services.

IP Address and Cookies

We may collect information about your computer, including where available your internet protocol (IP) address, operating system and browser type, for system administration and to report aggregate information to our advertisers. This is statistical data about our users' browsing actions and patterns, and does not identify any individual.

For the same reason, we may obtain information about your general internet usage by using a cookie file which is stored on the hard drive of your computer. Cookies contain information that is transferred to your computer's hard drive. They help us to improve our Website and to deliver a better and more personalised service. They enable us:

- To estimate our audience size and usage pattern.
- To store information about your preferences, and so allow us to customise our Website according to your individual interests.
- To speed up your searches.
- To recognise you when you return to our Website.

You may refuse to accept cookies by activating the setting on your browser which allows you to refuse the setting of cookies. However, if you select this setting you may be unable to access certain parts of our Website. Unless you have adjusted your browser setting so that it will refuse cookies, our system will issue cookies when you log on to our Website.

Why we collect, hold and use your personal information

We only collect personal information where it is reasonably necessary for one or more of our functions or activities, such as assessing the risk and administering the insurance policy, pay a claim or assessing an individual for employment. Only personal information necessary for the provision of these services and for the conduct of our business will be collected.

Where the personal information is sensitive – such as health and medical information – we will also obtain your consent before collecting the information unless we are permitted by law or an exception under the Act applies.

If you do not consent to provide us with the personal information that we request, or withdraw your consent to the use and disclosure of your personal information at any stage, we may not be able to offer you the products or provide the services that you seek.

From time to time, we may use your contact details to send you direct marketing communications including offers, updates and newsletters that are relevant to the services we provide. We always give you the option of electing not to receive these communications in the future. You can unsubscribe by notifying us and we will no longer send these communications to you.

Who we may disclose your personal information to and why

Your personal information will only be disclosed to third parties where the disclosure is reasonably required to provide you with insurance and insurance related services and to conduct our business, or for any of the purposes outlined in this Privacy Policy. Personal information for the purposes outlined may be shared on a confidential basis with our related entities, insurers, reinsurers, agents and service providers, including anyone we or your insurer has appointed to assist us or your insurer to consider your claim, for example loss adjusters, investigators, lawyers, medical professionals, repairers and suppliers, your employer, other insureds and interested parties under your insurance, external data storage providers, our advisors, statutory and regulatory bodies.

Disclosure to overseas recipients

In some instances our service providers and related companies to which we disclose personal information may be located overseas. The countries in which these service providers and related companies are located may vary from time to time, but include Switzerland and the United Kingdom.

Where personal information has been disclosed to an overseas recipient, there is a possibility that in certain cases that recipient may be required to disclose it under a foreign law. Where this occurs, such disclosure is not a breach of the Act.

Our insurers and other third parties who are located in Australia may disclose your personal information overseas in accordance with the provisions of their privacy policies.

Where you apply for employment with us, we may disclose your personal information to related companies, agents and service providers, and to insurers and reinsurers who may be located in the United Kingdom..

Your consent

By asking us to provide you with insurance and insurance related services, you consent to the collection, use and disclosure (including overseas disclosure) of the personal information you have provided to us for the purposes described in this Privacy Policy.

By applying for employment with us, you consent to the collection, use and disclosure of the personal information you have provided to us for the purposes described in this Privacy Policy.

Personal information about others

Where you provide personal information about others, you represent to us that you have made them aware that you will do so, the types of third parties we may disclose it to, the purposes we and such third parties use it for, how they can access it and how complaints about privacy may be made. Where you provide sensitive information about others, you represent to us that you have obtained their consent on these matters. If you have not and will not do so, you must tell us before you provide the sensitive information.

Accessing and seeking correction of your personal information

We will take reasonable steps to ensure that the personal information we hold about you is accurate, complete, relevant, and up-to-date and is not misleading when it is collected, used or disclosed. You may contact us to request access to your personal information that we hold at any time, and request us to correct any errors in that information. When making a request to access your personal information, we will carry out a verification process in order to determine that your information is not accessed by other individuals.

How we store your personal information

We store your personal information in our computer systems, data bases and in paper records and take reasonable precautions to ensure the security of all personal information is adequate to protect it from being used or disclosed for any other purposes other than the provision of our insurance products and services.

We maintain physical security over our paper and electronic data stores and premises by using locks and security systems. We also maintain computer and network security by utilising firewalls, user identifiers and passwords to control access to computer systems where your personal information is stored.

How to contact us or make a complaint

If you would like more information about how we manage your personal information, wish to request access to or correction of your personal information, please contact our Privacy Officer, using the contact details set out at the end of this Policy.

If you are not satisfied with our response, you may be able to refer the matter to the Financial Ombudsman Service, subject to its Terms of Reference, or to the Office of the Australian Information Commissioner.

Mandatory Data Breach Notification

The Privacy Amendment (Notifiable Data Breaches) Act 2017 amends the Privacy Act 1988 to require regulated entities to notify affected individuals and the Office of the Australian Information Commissioner (OAIC) of eligible data breaches. An eligible data breach happens if:

- (i) there is unauthorised access to, unauthorised disclosure of, or loss of, personal information held by an entity; and
- (ii) the access, disclosure or loss is likely to result in serious harm to any of the individuals to whom the information relates.

The relevant matters for deciding if the access or disclosure would be likely to result in serious harm include the nature, sensitivity and level of protection of the information amongst others.

As a regulated entity, we must comply with these obligations following a suspected or actual breach.

- (iii) Within 30 days of developing suspicion of an eligible data breach, we must assess whether there are reasonable grounds to believe such a breach has occurred;
- (iv) If we have reasonable grounds to believe that there has been an eligible data breach, we must prepare a statement setting out our contact details, a description of the eligible data breach, the kind of information concerned and recommendations about the steps that individuals should take in response. This information must be provided to the OAIC.

We must give a notification if:

- (i) We have reasonable grounds to believe that an eligible data breach has happened; or
- (ii) We are directed to do so by the Commissioner

Contact Details

We welcome your questions and comments about privacy. If you have any concerns or complaints, please contact our Privacy Officer.

Our Privacy Officer

Privacy Officer
Amazon Underwriting Pty Ltd
52 Chisholm Street, Darlinghurst NSW 2000
Phone: +61 401 822 996
Email: admin@amazonunderwriting.com.au

Australian Financial Complaints Authority

GPO Box 3
Melbourne VIC 3001
Phone: 1800 931 678

www.fos.org.au

Office of the Australian Information Commissioner

GPO Box 5218
Sydney NSW 2001
Phone: 1300 363 992

www.oaic.gov.au